

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1360

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE PROJECT CHOICE PROGRAM FEE; AMENDING SECTION 49-454, IDAHO CODE, TO REVISE A PROVISION REGARDING THE PROJECT CHOICE PROGRAM FEE; AMENDING SECTION 67-2914, IDAHO CODE, TO PROVIDE THAT CERTAIN MONEYS IN THE IDAHO LAW ENFORCEMENT FUND SHALL BE TRANSFERRED TO THE GENERAL FUND; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-454, Idaho Code, be, and the same is hereby amended to read as follows:

49-454. PROJECT CHOICE FEE. (1) A project choice program fee of ~~three dollars (\$3.00)~~ eight dollars (\$8.00) shall be collected in addition to each registration fee assessed pursuant to section 49-402(1), (2) or (3), 49-411, 49-412 or 49-434(1), Idaho Code. Such fees shall be deposited to the Idaho law enforcement fund established in section 67-2914, Idaho Code.

(2) The project choice program fee shall be collected and deposited pursuant to subsection (1) of this section for registrations for calendar year 2007 and thereafter.

(3) The project choice fee shall be used, subject to appropriation, exclusively for the purposes of creating a career ladder within the Idaho state police and to provide salaries to encourage the hiring and retention of trained and qualified employees for Idaho state police positions. Idaho state police personnel who have participated in and benefited from the use of the project choice fee, as of July 1, 2010, shall continue to participate in and benefit from the project choice fee while employed by the Idaho state police. Provided however, that beginning July 1, 2010, the use of the project choice fee shall be restricted in the following manner: the project choice fee shall be used exclusively for the purposes of creating a career ladder for commissioned officers, dispatch personnel and forensic personnel within the Idaho state police; and to provide salaries to encourage the hiring and retention of trained and qualified commissioned officers, dispatch personnel and forensic personnel.

SECTION 2. That Section 67-2914, Idaho Code, be, and the same is hereby amended to read as follows:

67-2914. IDAHO LAW ENFORCEMENT FUND ESTABLISHED. (1) For the purposes of the Idaho state police, there is established in the state treasury of the state of Idaho the Idaho law enforcement fund, to which shall be deposited funds as provided by law.

(2) At the beginning of each fiscal year, moneys derived from the project choice program fee, as provided in section 49-454, Idaho Code, that

1 are in the Idaho law enforcement fund and that exceed two hundred percent
2 (200%) of that fiscal year's appropriation, as certified by the state trea-
3 surer, shall be transferred to the general fund.

4 SECTION 3. SEVERABILITY. The provisions of this act are hereby declared
5 to be severable and if any provision of this act or the application of such
6 provision to any person or circumstance is declared invalid for any reason,
7 such declaration shall not affect the validity of the remaining portions of
8 this act.

9 SECTION 4. An emergency existing therefor, which emergency is hereby
10 declared to exist, this act shall be in full force and effect on and after
11 July 1, 2026.